

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF DORONIN AND OTHERS v. RUSSIA

(Applications nos. 44105/21 and 29 others –
see appended list)

JUDGMENT

STRASBOURG

14 December 2023

This judgment is final but it may be subject to editorial revision.



In the case of Doronin and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 23 November 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 12 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

15. The Court has further examined the rest of the complaints raised by the applicants and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, finds that there is no need to examine separately the remaining complaints under Article 6 of the Convention, and declares the remainder of the applications inadmissible;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 14 December 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Peeter Roosma
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	44105/21 30/08/2021	**Vladimir Dmitriyevich DORONIN** 1991	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Volgograd 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 04/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station on 31/01/2021 for compiling an offence record between 1.30 p.m. and 9.00 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
2.	44369/21 12/08/2021	**Yevgeniy Olegovich TIKHONOV** 2000	Glukhov Aleksey Vladimirovich Novocheboksarsk	Rally "Free Navalnyy" Cheboksary 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Supreme Court of the Chuvashia Republic 26/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
3.	44373/21 12/08/2021	**Artem Aleksandrovich MAKAROV** 1989	Glukhov Aleksey Vladimirovich Novocheboksarsk	Rally "Free Navalnyy" Cheboksary 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Chuvashia Republic 30/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

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4.	44380/21 12/08/2021	**Ivan Igorevich KUZNETSOV** 1995	Glukhov Aleksey Vladimirovich Novocheboksarsk	Rally "Free Navalnyy" Cheboksary 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 12,000	Supreme Court of the Chuvashia Republic 15/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
5.	44383/21 12/08/2021	**Aleksey Dmitriyevich MAKSIMOV** 2001	Glukhov Aleksey Vladimirovich Novocheboksarsk	Rally "Free Navalnyy" Cheboksary 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Chuvashia Republic 23/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
6.	44425/21 17/08/2021	**Aleksandr Ivanovich DYAKOV** 1988	Solovyev Stanislav Vyacheslavovich Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 18/02/2021	Art. 5 (1) – unlawful detention - escorting to and detention at the police station after compiling an offence record between 4.10 p.m. on 31/01/2021 and 02/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
7.	44668/21 12/08/2021	**Aleksandr Andreyevich KUDRYASHOV** 1993	Glukhov Aleksey Vladimirovich Novocheboksarsk	Rally "Free Navalnyy" Cheboksary 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of Chuvashia 04/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

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8.	44693/21 12/08/2021	**Arkadiy Nikolayevich MITROSHKIN** 2021	Glukhov Aleksey Vladimirovich Novocheboksarsk	Rally "Free Navalnyy" Cheboksary 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 12,000	Supreme Court of the Chuvashia Republic 06/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
9.	44699/21 12/08/2021	**Pavel Vadimovich PETROV** 2001	Glukhov Aleksey Vladimirovich Novocheboksarsk	Rally "Free Navalnyy" Cheboksary 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of Chuvashia 06/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
10.	44706/21 12/08/2021	**Anzhelika Nikolayevna ROMANOVA** 1995	Glukhov Aleksey Vladimirovich Novocheboksarsk	Rally "Free Navalnyy" Cheboksary 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Chuvashia Republic 31/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
11.	44967/21 18/08/2021	**Svetlana Mikhaylovna KRIVITSKAYA** 1972	Vasilyev Nikolay Vladimirovich Moscow	Eco-protest Moscow 27/09/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 18/02/2021	Art. 6 (1) - lack of impartiality of tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
12.	45001/21 20/08/2021	**Darya Dmitriyevna VIKULOVA** 1997	Krasikov Vladimir Vladimirovich Samara	Rally "Free Navalnyy" Samara 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Samara Regional Court 18/05/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence record; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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13.	45022/21 03/09/2021	**Pavel Sergeyevich LEVITSKIY** 1986	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Kurgan 23/01/2021	article 20.2 § 5 of CAO	20 hours of community work	Kurgan Regional Court 17/03/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence record; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
14.	45056/21 25/08/2021	**Aleksandra Aleksandrovna SHNAYDER** 2000		Rally "Free Navalnyy" Novosibirsk 23/01/2021	article 20.2 § 2 of CAO	detention for 8 days	Novosibirsk Regional Court 25/02/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - Right of appeal against criminal conviction/sentence - The sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
15.	45255/21 30/08/2021	**Inna Vyacheslavovna TITOVA** 1985	Vasin Vladimir Valeryevich Krasnoyarsk	Rally "Free Navalnyy" Krasnoyarsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnoyarsk Regional Court 13/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
16.	45264/21 30/08/2021	**Marina Yuryevna KADETOVA** 1996	Vasin Vladimir Valeryevich Krasnoyarsk	Rally "Free Navalnyy" Krasnoyarsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnoyarsk Regional Court 19/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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17.	45271/21 30/08/2021	**Pavel Olegovich GERASIMENKO** 2001	Vasin Vladimir Valeryevich Krasnoyarsk	Rally "Free Navalnyy" Krasnoyarsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnoyarsk Regional Court 13/05/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence record on 31/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
18.	45276/21 30/08/2021	**Valentina Mikhaylovna VESNYANKO** 1999	Vasin Vladimir Valeryevich Krasnoyarsk	Rally "Free Navalnyy" Krasnoyarsk 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Krasnoyarsk Regional Court 03/06/2021	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence record on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings,	4,000
19.	46593/21 31/08/2021	**Yana Aleksandrovna ZENKINA** 1993	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Tambov 23/01/2021	article 20.2 § 2 of CAO	fine of RUB 20,000	Tambov Regional Court 01/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
20.	47098/21 16/09/2021	**Vladislav Andreyevich LYGIN** 1998	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Volgograd 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 17/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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21.	47146/21 07/09/2021	**Stanislav Vladimirovich MERENKOV** 1991	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	detention for 10 days	Moscow City Court 18/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 1.20 p.m. on 31/01/2021 and 7.30 p.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
22.	47239/21 16/09/2021	**Khasana Aleksandrovna ROKOSSOVSKAYA** 2000	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Murmansk 23/01/2021	article 20.2 § 2 of CAO	fine of RUB 10,000	Murmansk Regional Court 09/04/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 8.00 a.m. on 30/01/2021 and 7.00 p.m. on 01/02/2021; Art. 6 (1) - lack of impartiality of tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings	4,000
23.	28736/22 24/05/2022	**Aleksey Igorevich NEFEDOV** 1976		Rally "Free Navalnyy" Novosibirsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Novosibirsk Regional Court 24/11/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 1.20 p.m. and 6.00 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings.	4,000

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24.	30801/22 09/06/2022	**Gleb Yuryevich LEVOCHKIN** 1992	Baranova Nataliya Andreyevna Moscow	Rally "Free Navalnyy" Moscow 21/04/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 09/02/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 7.30 p.m. on 24/02/2021 and 4.00 p.m. on 26/04/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
25.	32624/22 09/06/2022	**Anastasiya Georgiyevna TAYNS-KOVALEVSKAYA** 1995		Rally "Free Navalnyy" Moscow 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 09/12/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
26.	35521/22 29/06/2022	**Konstantin Sergeyevich MAKLYAK** 1990	Levchenko Aleksey Alekseyevich Rostov-on-Don	Anti-war rally Rostov-on-Don 06/03/2022	article 19.3 § 1 of CAO	detention for 15 days	Rostov Regional Court 18/03/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 3.20 p.m. on 06/03/2022 and 8.10 a.m. on 07/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

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27.	35532/22 29/06/2022	**Olesya Igorevna BAKHTIYAROVA** 2003	Levchenko Aleksey Alekseyevich Rostov-on-Don	Anti-war rally Rostov-on-Don 06/03/2022	article 19.3 § 1 of CAO	detention for 15 days	Rostov Regional Court 10/03/2022	Art. 5 (1) -unlawful detention - escorting to and detention at the police station for compiling an offence record between 3.20 p.m. on 06/03/2022 and 10.00 a.m. on 07/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
28.	36163/22 01/07/2022	**Tatyana Vladimirovna CHECHETKINA** 1991	Kabirov Rushan Rafisovich Kazan	Anti-war rally Kazan 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 27/04/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 4.00 p.m. on 27/02/2022 and the morning of 28/02/2022 when the applicant was transferred to the court; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
29.	36231/22 01/07/2022	**Maksim Vladimirovich MURUGIN** 1994	Levchenko Aleksey Alekseyevich Rostov-on-Don	Anti-war rally Rostov-on-Don 06/03/2022	article 19.3 § 1 of CAO	detention for 15 days	Sverdlovsk Regional Court 18/03/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 6.10 p.m. on 06/03/2022 and the morning of 07/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings;	5,000

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								Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	
30.	45186/22 06/09/2022	**Vakhtang Anatolyevich PATALAKH** 1977		Anti-war rally Moscow 26/02/2022	article 20.2 § 5 of CAO	fine of RUB 11,000	Moscow City Court 11/05/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence record between 5.40 p.m. and 10.56 p.m. on 26/02/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

[1] Plus any tax that may be chargeable to the applicants.